

Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-01, SERIES OF 2026

Series of 2026

AN ORDINANCE PROMOTING ORGANIC AGRICULTURE, REGULATING AGRICULTURAL CHEMICAL APPLICATION, AND PRESCRIBING LOCAL BUFFER ZONES IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE -

This Ordinance shall be known and cited as the 'Davao City Organic Farming and Agricultural Buffer Zone Ordinance of 2026'.

SECTION 2. DECLARATION OF POLICY -

It is hereby declared the policy of the City of Davao to promote sustainable agriculture, protect ecological balance, and safeguard public health from harmful agrochemicals pursuant to Section 16 of Republic Act No. 7160 and Republic Act No. 10068.

SECTION 3. RULES OF INTERPRETATION -

The provisions of this Ordinance shall be liberally construed in favor of environmental conservation and the general welfare of the inhabitants of Davao City.

SECTION 4. DEFINITION OF TERMS -

For purposes of this Ordinance, 'Organic Agriculture' shall refer to all agricultural systems that promote the environmentally, socially, and economically sound production of food and fibers. 'Buffer Zone' shall refer to an identified strip of land separating agricultural plantations from residential communities.

SECTION 5. LOCAL INCENTIVES FOR ORGANIC CONVERSION -

Agricultural landholders who transition at least twenty percent (20%) of their cultivable land to certified organic farming practices shall be eligible for a fifteen percent (15%) local real property tax rebate for three (3) consecutive years, subject to verification by the City Agriculturist Office.

SECTION 6. ESTABLISHMENT OF RESIDENTIAL BUFFER ZONES -

All commercial agricultural landholdings adjacent to established residential subdivisions, public schools, or inland water bodies shall maintain a vegetated buffer zone of not less than thirty (30) meters from the plantation boundary, planted with multi-layered canopy trees.

SECTION 7. PROHIBITION OF AERIAL PESTICIDE APPLICATION -

No agricultural entity, corporation, or individual shall apply, disseminate, or spray any chemical pesticide, fungicide, or herbicide by means of aircraft, drones, or any aerial dispersal apparatus anywhere within the territorial boundaries of Davao City, regardless of national licenses or permits issued by the Fertilizer and Pesticide Authority.

SECTION 8. GROUND APPLICATION SAFETY GUIDELINES -

Ground application of registered agricultural chemicals must comply strictly with manufacturer dilution ratios and wind-speed thresholds prescribed by national agricultural standards.

SECTION 9. ADMINISTRATIVE MONITORING TASK FORCE -

There is hereby created the Davao City Agrochemical Monitoring Task Force headed by the City Agriculturist with representatives from the City Health Office and accredited farmer cooperatives.

SECTION 10. PENALTIES AND FINES -

Any person or corporate officer found guilty of violating Section 6 or Section 8 shall be punished by a fine of Five Thousand Pesos (P5,000.00) or imprisonment for not more than one (1) year, or both, at the discretion of the court.

SECTION 11. APPROPRIATIONS -

The amount necessary for the initial implementation of this Ordinance shall be charged against the unappropriated surplus of the General Fund.

SECTION 12. SEPARABILITY CLAUSE -

If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of this Ordinance shall not be affected thereby.

SECTION 13. REPEALING CLAUSE -

All prior city ordinances, executive orders, and administrative regulations inconsistent with this Ordinance are hereby modified or repealed accordingly.

SECTION 14. EFFECTIVITY -

This Ordinance shall take effect thirty (30) days after its publication in two (2) newspapers of general circulation within the City of Davao and posting in prominent public places.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

ATTESTED:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

ATTESTED:

SEBASTIAN Z. DUTERTE
City Mayor

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator